

Trade Marks for Ayurvedic Products in India

IP-SAKTI Sahayak — Internal Hackathon Knowledge Pack

Simplified summary of the Indian Trade Marks Act, 1999, Trade Marks Rules, 2017, and official IP India trademark resources. Not legal advice.

1. What a Trademark Protects

A trademark protects a mark used or proposed to be used to distinguish one person's goods or services from others. For an Ayurvedic business, this mainly protects the **brand identity**—such as a product name or logo—not the Ayurvedic formula itself.

Important: Patent law protects inventions; trademark law protects brand/source identity. An Ayurvedic product can therefore raise separate patent, traditional-knowledge, regulatory and trademark questions.

2. Core Official Sources

Source	What your AI uses it for
Trade Marks Act, 1999	Core law: definitions, registration, refusal, infringement, renewal, assignment, etc.
Trade Marks Rules, 2017	Procedure, forms, fees and Registry processes.
IP India Trademark Search	Find existing identical/similar marks before giving guidance.
IP India classification resources	Identify the relevant goods/services class.
IP India workflow/e-filing resources	Explain the practical registration process.
IP India guidelines/SOPs	Current operational guidance, including current SOP/Madrid material.

3. High-Value Act Sections for Your RAG

Section 2 — Definitions, especially the meaning of trade mark.

Section 9 — Absolute grounds for refusal, including distinctiveness/descriptiveness issues and statutory exceptions.

Section 11 — Relative grounds: earlier marks and likelihood of confusion.

Section 12 — Honest concurrent use/special circumstances in appropriate cases.

Section 13 — Restrictions involving notified International Non-Proprietary Names (important to medicine-related branding).

Section 18 — Application for registration.

Sections 20–23 — Advertisement, opposition and registration process.

Section 25 — Duration, renewal and restoration.

Sections 28–29 — Rights from registration and infringement.

Sections 30–35 — Limits/defences and related provisions.

Sections 47 & 57 — Removal/cancellation/rectification mechanisms.

4. Ayurveda-Specific Interpretation

There is not a separate 'Ayurvedic Trademark Act'. Ayurvedic brands are generally assessed under the ordinary Indian trademark framework. The product may simultaneously be subject to AYUSH/drug, food, advertising, biodiversity, patent and traditional-knowledge rules.

Example: If a startup wants to sell an Ayurvedic product as 'HerbArogya', IP-SAKTI should check the proposed mark, the goods/services, earlier similar marks, refusal grounds and any medicine-related restrictions. It should not answer the question using patent law alone.

5. AI Trademark-Search Workflow

1. Identify the proposed brand name/logo and type of mark.
2. Ask what the product/service actually is.
3. Map the goods/services to the appropriate classification using official/current resources.
4. Search official IP India trademark databases for identical and similar marks.

5. Assess similarity using wording/phonetics/visual aspects and related goods/services; do not treat keyword matching as a legal conclusion.
6. Retrieve relevant Act/Rules provisions, especially Sections 9, 11 and any applicable medicine-related provision.
7. Explain the result in simple language with exact citations and uncertainty.
8. Escalate borderline/high-stakes questions to a qualified trademark professional.

6. Questions Your Assistant Should Answer

- Can I register my Ayurvedic product name as a trademark?
- Is this brand name already registered or similar to an existing mark?
- Which class should I investigate for this product?
- Why might the proposed mark be refused?
- What is the difference between a trademark and a patent?
- What happens after filing?
- How long does registration last and how is it renewed?
- Can another company use a similar name?
- What does opposition mean?
- Where can I verify the answer on an official government source?

7. Official IP India Resources to Put in Your RAG

Trade Marks Act resources: Official Act page and downloadable versions.
<https://ipindia.gov.in/trade-marks-resources-act>

Trade Marks Rules resources: Official Trade Marks Rules, 2017 and related rules.
<https://ipindia.gov.in/trade-marks-resources-rules>

Trade Marks manuals: Current manual resources; the site currently lists a 2026 draft manual.
<https://ipindia.gov.in/trade-marks-resources-manual>

Trade Marks guidelines: Current SOPs, well-known mark and Madrid resources.
<https://ipindia.gov.in/trade-marks-resources-guidelines>

Search Existing Trademarks: Official trademark search tools, including AI/ML and standard search.
<https://ipindia.gov.in/trade-marks-before-you-apply-search-existing-trademarks>

8. RAG Metadata

For every chunk, store: **source authority, jurisdiction, domain, document type, exact section/rule, topic, document date/version, official URL, and last-verified date**. This lets the assistant cite the precise legal source instead of producing an uncited answer.

9. Guardrails

- Never claim a mark is legally registrable solely from an AI similarity score.
- Never treat a keyword match as proof of infringement.
- Never invent a section, rule, fee, case or Registry status.
- Prefer official IP India sources over blogs when an official source exists.
- Keep patent, trademark and AYUSH regulatory advice visibly separate.
- Show the source and provide human/legal escalation for uncertain cases.

10. Best MVP

User enters Ayurvedic brand/product → classify product → ask minimal questions → search official IP India sources → check existing marks → retrieve relevant Act/Rules sections → simple explanation → exact citations → confidence/risk indicator → official next-step links.

Source note: Official IP India resources were checked on 27 August 2026. The live IP India site currently lists the Trade Marks Act, Trade Marks Rules 2017, trademark search tools, and current 2026 SOP/guideline/manual material. For

production, preserve the original official documents and their dates/versions alongside this summary.